

Madan Kumar Vishkerma v. State of U.P. and 4 Others

Allahabad High Court · Division Bench · 17 January 2024 · 2024:AHC:7847-DB · Writ - C No. 37208 of 2023 · **Writ disposed of; petitioner left to the Consumer Grievance Redressal Forum under clause 7.10; Forum to decide preferably within twelve weeks of the complaint**

HEADNOTE

Where a consumer challenges an order dated 19.07.2023 that carries forward the dues of an alleged erstwhile tenant and requires those dues to be paid before a new connection, and contends that recovery is barred by Section 56 of the Electricity Act, 2003 because the dues are more than two years old, the writ court will not examine that challenge if the Consumer Grievance Redressal Forum under clause 7.10 of the U.P. Electricity Supply Code, 2005 is an efficacious alternative. The petition was disposed of, leaving the petitioner to that remedy. If the Forum is approached, it is to decide the complaint expeditiously, preferably within twelve weeks of filing. The Court did not decide the 19.07.2023 order, the Section 56 bar, or whether Rahamatullah Khan is distinguished by K.C. Ninan.

FACTUAL SUMMARY

Madan Kumar Vishkerma owns premises of which, on the finding under challenge, one Mohan Lal had been the tenant. By an order dated 19 July 2023, respondent no. 4 held that Mohan Lal's outstanding electricity dues had to be paid before any new connection. In Writ-C No. 37208 of 2023 he said the last demand was raised on 29 September 2003, so recovery was barred by Section 56 of the Electricity Act, 2003, relying on *Ajmer Vidyut Vitran Nigam Ltd. v. Rahamatullah Khan*.

The Electricity Department filed a counter affidavit on how bills in Mohan Lal's name were raised after that date, and a rejoinder was taken on record. The licensee then submitted that carrying forward the erstwhile tenant's dues was a clause 7.7.4 billing dispute, that the dues and new-connection dispute fell under clause 7.7.2, and that both lay before the Consumer Grievance Redressal Forum under clause 7.10 of the U.P. Electricity Supply Code, 2005. It added that Rahamatullah Khan had been distinguished in *K.C. Ninan v. Kerala State Electricity Board*.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

Carry-forward of an erstwhile tenant's dues and a new connection — writ declined in favour of the Forum

QUESTION

Will the writ court decide a challenge to an order carrying forward an alleged erstwhile tenant's dues as a condition of a new connection, including a plea under Section 56 of the Electricity Act, 2003, when clause 7.10 of the U.P. Electricity Supply Code, 2005 affords the Consumer Grievance Redressal Forum?

HOLDING

No. The Court was satisfied that the petitioner had an efficacious alternative remedy of approaching the Consumer Grievance Redressal Forum under the Code, and therefore declined to examine the challenge to the order dated 19.07.2023. It left him free to avail that remedy. If he approaches the Forum, the Forum is to decide the grievance expeditiously, preferably within twelve weeks from the date the complaint is filed. The petition was disposed of. ¶ 7-8

QUALIFIER

Counsel for the licensee submitted that carry-forward of the erstwhile tenant's dues is a billing dispute under clause 7.7.4 and that the dispute about dues and a new connection is covered by clause 7.7.2, and recited clauses 7.10(ii) and (iii). The Court did not construe those clauses, Section 56, or the authorities cited on the two-year bar.

FLAG Seven-page PDF of successive orders in Writ-C No. 37208 of 2023. Operative judgment is the numbered order of 17.1.2024 (neutral citation 2024:AHC:7847-DB; Manoj Kumar Gupta, ACJ and Kshitij Shailendra, J.), paragraphs 1-9. Earlier unnumbered orders: 17.11.2023 (Siddhartha Varma and Manoj Bajaj, JJ.) listing as fresh; 28.11.2023

(Siddhartha Varma and Shekhar B. Saraf, JJ.) recording the petitioner's case that the last demand was 29.09.2003; 7.12.2023 (Siddhartha Varma and Syed Qamar Hasan Rizvi, JJ.) time for a counter affidavit on bills in Mohan Lal's name after 29.09.2003; 20.12.2023 (Siddhartha Varma and Shekhar B. Saraf, JJ.) counter affidavit of respondent no. 4 taken on record; 3.1.2024 (Manoj Kumar Gupta, ACJ and Kshitij Shailendra, J.) rejoinder taken on record. Clauses 7.7.2 and 7.7.4, and the text of clauses 7.10(ii) and (iii), are in counsel's submission in paragraph 6. Clause 7.7.2 is not a catalog key.

PRINCIPLE TAGS

alternate-remedy-clause-7.10 The writ against the 19.07.2023 order, which required payment of an alleged erstwhile tenant's dues before a new connection, was disposed of because the Consumer Grievance Redressal Forum under clause 7.10 was an efficacious alternative. The Court declined to examine the challenge. ¶ 7-8

disputed-bill-relegated-to-cgrf-clause-7.10 The dispute about carrying forward Mohan Lal's dues, and about release of a new connection, was left to the Forum under clause 7.10, with a direction to decide preferably within twelve weeks of the complaint. The two-year bar under Section 56 was not tried. ¶ 2-8

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER SECTION 56 OF THE ELECTRICITY ACT, 2003 BARS RECOVERY OF MOHAN LAL'S DUES AS MORE THAN TWO YEARS OLD, AND WHETHER K.C. NINAN DISTINGUISHES RAHAMATULLAH KHAN ON THAT PLEA
The petitioner said the last demand was raised on 29.09.2003 and relied on Rahamatullah Khan. The licensee said that decision had been distinguished by the three-judge bench in K.C. Ninan and that the plea could be raised before the Forum. The Court declined to examine it. ¶ 4-7

NOT DECIDED — WHETHER THE ORDER DATED 19.07.2023 RIGHTLY CARRIED FORWARD MOHAN LAL'S DUES AS A CONDITION OF A NEW CONNECTION
That finding was the order under challenge. It was left to the Consumer Grievance Redressal Forum. ¶ 2-3, 7

NOT DECIDED — WHETHER CARRY-FORWARD OF THE ERSTWHILE TENANT'S DUES IS A CLAUSE 7.7.4 BILLING DISPUTE AND THE NEW-CONNECTION DISPUTE IS COVERED BY CLAUSE 7.7.2
Those classifications were the licensee's submission. The Court did not construe either clause. ¶ 6-7

NOT DECIDED — WHEN BILLS IN MOHAN LAL'S NAME WERE RAISED AFTER 29.09.2003
Raised on 28.11.2023 and 7.12.2023; a counter affidavit was filed to explain it. The disposing Bench made no finding on the date of the last demand. ¶ orders of 28.11.2023 and 7.12.2023

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Ajmer Vidyut Vitran Nigam Limited v. Rahamatullah Khan</i> (2020) 4 SCC 650 Supreme Court of India	Placed by the petitioner in support of the contention that dues for a period more than two years old cannot be recovered under Section 56 of the Electricity Act, 2003.		Petitioner	Referred
<i>K.C. Ninan v. Kerala State Electricity Board & Ors.</i> 2023 SCC Online SC 663 Supreme Court of India	Cited by the licensee as a later three-judge decision of the Supreme Court said to have distinguished Rahamatullah Khan. The licensee also said the Section 56 plea could be raised before the Consumer Grievance Redressal Forum.		Respondent	Referred

